

Athens, 04-09-2023

Protocol No.: 2230

Decision 22/2023

(Single-Member Body)

The President of the Authority, as a single-member body under Article 17 paragraph 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided for in Articles 4 paragraph 3 and 10 paragraph 4 of the Operating Regulation of the Authority (Government Gazette B' 879/25.02.2022), convened via teleconference on 30-03-2023 in order to jointly examine, due to relevance, the cases mentioned below in the background of this decision. Present without voting rights was Kyriaki Karakasi, legal auditor – lawyer, as well as Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

A complaint was initially submitted to the Data Protection Authority under protocol number G/EIS/4461/17-03-2022 by the first complainant, along with its supplementary details (G/EIS/7941/13-06-2022), according to which the latter, with his written message dated ... to the company named "VOLTON Greek Energy S.A." as well as with the relevant requests dated ..., which he claims to have sent to the aforementioned company on ..., requested copies of the recorded conversations he had with a company representative regarding the renewal of a contract for three (3) supply numbers. However, as the complainant states, the aforementioned access request had not been satisfied by the date of submission of the relevant complaint, that is, by

In the context of examining the above complaint, with its document number G/EX/1919/27-07-2022, the Authority forwarded the relevant complaint to the said company, asking the latter to clarify whether the complainant exercised, as he claims, the right of access to data concerning him and to which specific data, as well as whether and how it responded to the aforementioned request of the complainant or for what reason it may not have satisfied it in a timely manner, and to attach the relevant document request. Additionally, clarifications were requested regarding the subject of the relevant conversations with the complainant, regarding whether they were recorded by the said company, and if so, for how long the company retains them according to its policy. Finally, the company was asked to clarify its policy regarding the recording of conversations with its customers, and specifically, which calls (e.g., outgoing from the company or incoming to it) and by what process are recorded, for how long they are stored, as well as whether and by what process access requests to them are satisfied.

Following this, the company complained against sent the document number G/EIS/9425/09-08-2022 Memorandum, in which, among other things, it confirmed the exercise before it of the relevant right of access of the complainant to recorded conversations concerning him. In fact, it was mentioned as the date on which the exercise of this right by the data subject was repeated and the The complained company also stated that until ... it had not managed to respond to the above requests of the complainant due to the increased volume of related requests and inquiries it receives due to the ongoing energy crisis, while it claims to have satisfied the complainant's right of access on ... (see the document number G/EIS/1509/28-02-2023 supplementary document of the complainant as well as the relevant document submitted with the hearing Memorandum of the complained company).

Furthermore, the complained company stated that the subject of the relevant recorded calls was the renewal of the contract for the three supply numbers, which the complainant included in his relevant requests. Furthermore, the

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The respondent clarifies that the aforementioned conversations were recorded in the context of conducting lawful professional practice aimed at renewing the contract with the consumer – client and that the company, after informing the consumers, records calls for the purpose of providing evidence of commercial transactions or other professional communications. Regarding the retention period of the

recorded conversations, it was stated that it amounts to one year, while following the relevant explicit consent of the data subjects, it may extend to five years. Finally, concerning the process for satisfying requests for access to recorded conversations, the respondent noted that these are fulfilled by the Customer Service Department upon submission of relevant written requests to specific email addresses (privacy@volton.gr or customersupport@volton.gr) without requiring confirmation of the identity of the requester except in cases where the request is received from an email address not already declared by the respective requester, while when it concerns a third party, it is clarified that relevant authorization is also requested.

Furthermore, a complaint was submitted to the Authority against the aforementioned respondent company, with reference number Γ/ΕΙΣ/6830/09-05-2022, from the second complainant. The latter claims that with his extrajudicial statement – invitation dated ..., which he states he sent to the respondent company via email, he requested a copy of the recorded conversation dated ... with a representative of the aforementioned company regarding his request dated ... which was similarly sent via email in the name and on behalf of his clients, A and B. Subsequently, with his request dated ... to the respondent, he requested the recorded call of the same day (i.e., ...), during which a corporate representative called at ... from the phone number 2163001000 to the mobile of the complainant (...) and assured him of the registration of his first request as well as a prompt response regarding it. However, as the complainant stated, the aforementioned access requests were not satisfied.

The Authority, in the context of examining the above complaint, with its letter numbered Γ/ΕΞ/1918/27-07-2022, forwarded the said complaint to the respondent company, requesting clarification on whether the complainant exercised, as claimed, the right of access to data concerning him and, if so, in what specific manner, as well as whether and how the respondent company responded to the complainant's request or for what reason the aforementioned request was not satisfied in a timely manner, and to attach the relevant request and any response from the company. Clarifications were also requested regarding the subject matter of the conversations with the complainant, whether they have been recorded by the respondent, and if so, for how long the latter retains them, according to its policy. Finally, it was again requested to clarify the corporate policy regarding the recording of conversations with the company's customers, and specifically, which calls (e.g., outgoing from your company or incoming to it) and by what process are recorded, for how long they are stored, as well as whether and by what process access requests to them are satisfied.

The respondent company sent to the Authority its memorandum numbered Γ/ΕΙΣ/9423/09-08-2022, in which it initially confirmed that the complainant exercised before it on ... and ... the right of access to the relevant recorded conversations, records of which it submits before the Authority and stated that until ... it had not managed to respond to the aforementioned requests of the complainant due to the increased volume of related requests and inquiries it receives due to the ongoing energy crisis, while it claims to have satisfied the complainant's right of access on ... (see the relevant document submitted along with the hearing memorandum of the respondent company). Regarding the other issues for which clarifications were requested, the respondent company reiterated in its aforementioned letter what it had stated in the previously mentioned document numbered Γ/ΕΙΣ/9425/09-08-2022, according to what was detailed immediately above.

Finally, a complaint was submitted to the Authority against the aforementioned respondent company, with reference number Γ/ΕΙΣ/7624/01-06-2022, from the third complainant. The latter states, among other things, that he initially sent an email on ... to the same respondent company requesting a copy of the conversation that took place with a representative on the same date, i.e., on Following the reminders from the complainant on ... and ... to the aforementioned company, he received on ... the standardized call hearing form and despite his related reaction, following the insistence of the respondent on the submission process of this specific form for exercising the relevant right of access (see the message dated ...).

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of the respondent's email), the complainant sent on ... the signed application as indicated by the company, in accordance with the latter's instructions. With this application, the complainant requested a copy of the recorded conversation with a company representative regarding the formation of his contract with the respondent. Subsequently, on ..., and after representatives of the respondent

company informed the complainant in the meantime, responding to related reminder text messages from the latter (see the emails from ..., ..., and ... from the complainant), that his request was being processed, the complainant requested from the company copies of all recorded calls concerning him during the last four months from the submission of the aforementioned request. However, on ..., a representative of the respondent company asked the complainant to resubmit the aforementioned standardized form for the requested call regarding the formation of the contract, either with a handwritten signature or with an electronic verification of its authenticity (through the relevant service of the Unified Digital Portal, gov.gr), simultaneously referring him to follow the same procedure for any other recorded call he would wish to obtain. As the complainant states, the above access requests had not been satisfied at the time of submitting the complaint under consideration.

The Authority, in the context of examining the above complaint, with its document number Γ/ΕΞ/1985/08-08-2022, forwarded the said complaint to the respondent company, requesting clarification on whether the complainant exercised, as claimed, the right of access to data concerning him and, if so, which specific data, as well as whether and how the respondent company responded to the complainant's request or for what reason the above request was not satisfied in a timely manner, and to attach the relevant request and any response from the company. Clarifications were also requested regarding the subject of the conversations with the complainant, whether they were recorded by the respondent, and if so, for how long the latter retains them, according to its policy. Finally, it was again requested to clarify the corporate policy regarding the recording of conversations with the company's customers, specifically, which calls (e.g., outgoing from your company or incoming to it) are recorded, for how long they are stored, and whether and how access requests to them are satisfied.

The respondent company sent to the Authority its document number Γ/ΕΙΣ/9930/07-09-2022, in which it initially confirmed that the complainant exercised before it on ... the relevant right of access and stated that until ... it had not managed to respond to the complainant's above request due to the increased volume of related requests and inquiries it was receiving due to the ongoing energy crisis, while it claims to have satisfied the complainant's right of access on ... (see the document number Γ/ΕΙΣ/1451/26-02-2023 of the complainant as well as the relevant document submitted with the post-hearing memorandum of the respondent company). Regarding the subject of the recorded conversations, the respondent company noted that they concerned the conclusion of the contract with the complainant as well as clarifying questions from the complainant regarding, among other things, the warranty. As for the other issues for which clarifications were requested, the respondent reiterated in its above document what it had argued in the previously mentioned documents numbered Γ/ΕΙΣ/9425/09-08-2022 and Γ/ΕΙΣ/9423/09-08-2022, according to what was detailed immediately above.

Following this, the Authority summoned the respondent company to a hearing before the President of the Authority as a single-member body via videoconference, with the document number Γ/ΕΞΕ/584/07-03-2023, on 16-03-2023, a date on which the discussion was postponed due to the absence of the lawyers of the Athens Bar Association. Subsequently, in the adjourned session of 30-03-2023, again via videoconference, for which the related summons was sent with document number Γ/ΕΞΕ/736/22-03-2023, the respondent appeared and presented its views through its lawyers, Iliana Kosti (AM/DSA ...) and Konstantinos Stasinopoulos (AM/DSA ...), while G, as Head of Customer Service of the aforementioned respondent, was also present on behalf of the same.

Furthermore, after the said hearing, the aforementioned respondent was granted a deadline to submit a memorandum to further support its claims until 13-04-2023.

Subsequently, the respondent company timely submitted its document number Γ/ΕΙΣ/2723/12-04-2023 memorandum along with the attached documents, in which

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among other things, states the following: Firstly, it mentions that the requests of the complainants coincided in time with the imposition of emergency measures for the protection of public health against the risk of further spread of the coronavirus, as well as with the energy crisis, which led to the overload of the management system of the respondent due to the volume of requests it was receiving regarding the adjustment clause and the consequent increases in consumer bills. The respondent company

admits that during that period it experienced delays in handling requests, while regarding the contentious requests of the three complainants, it claims that the latter were obliged to weigh the right of data subjects against the ability to send the content of the communication that was requested, and they were motivated not only by dissatisfaction but also by vindictive feelings. Subsequently, the respondent company states that the contentious requests of the complainants did not aim to provide information about the processing of their data but either to inquire about charges, which, however, are mentioned on the company's website and in customer bills, or to send the contract, the terms of which they could likewise view on the respondent's website. It is noted, moreover, by the respondent that in all three cases under examination, there was a justified delay, according to its claims, as the subjects acted in bad faith and did not follow the procedure proposed by the company for identifying the requested data or for certifying the fulfillment of the conditions for submitting the requests. It is emphasized that in any case, it responded, albeit belatedly, to the access requests of the complainants.

As for the first complainant, D, it notes that in the submitted standardized forms for exercising the right that he completed, he generally and vaguely stated that he wishes to gain access to the calls in which the contracts concerning his services were renewed and never provided any clarification, and further states that on ... it responded to the request of the aforementioned complainant by sending him the requested information. Regarding the second complainant, E, it is noted that the "fabrications" he cited for the respondent did not allow the latter to examine the access request and that, in any case, it responded to it by sending the complainant a relevant email on For the third complainant, ST, the respondent notes that on ... it satisfied his request, while also emphasizing that the complainant did not provide any facilitation for the identification of the request.

Finally, the respondent refers, among other things, to the retention period of recorded conversations with consumers, while on the one hand, it cites an annex of the Electricity Supply Code (Government Gazette B/832/09-04-2013), according to which every customer complaint/request must be recorded and managed accordingly with relevant proof of registration, and on the other hand, it mentions the internal - corporate recipients of access requests to recorded conversations.

The Authority, having taken into account the above,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Article 5 paragraph 1 of the GDPR sets out the principles that must govern a processing operation. According to the principle of accountability introduced by this article, it is stipulated in paragraph 2 thereof that the data controller "bears the responsibility and is able to demonstrate compliance with paragraph 1 ('accountability')." As the Authority has ruled,¹ with the GDPR a new compliance model was adopted, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the further duty to

¹ See Authority decision 26/2019, paragraph 8, available on its website.

He proves himself and at any time his compliance with the principles of Article 5 paragraph 1 of the GDPR.

2. Because according to Article 15 paragraphs 1, 3, and 4 of the GDPR "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular, recipients in third countries or international organizations, d) where possible, the period for

which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject or the right to object to such processing, f) the right to lodge a complaint with a supervisory authority, g) when the personal data have not been obtained from the data subject, any available information as to their source, h) the existence of automated decision-making, including profiling, as referred to in Article 22 paragraphs 1 and 4 and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject. 2. [...] 3. The data controller shall provide a copy of the personal data undergoing processing. [...] If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format. 4. The right to receive a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others." With these provisions, the right of access of the data subject to their personal data is established. In the context of this right, the data subject must, on the one hand, have access to personal data that has been collected and concerns them, in order to be informed and to verify the accuracy and nature of the processing of their data and to verify the lawfulness of the processing, and on the other hand, be able to exercise this right easily and at reasonable intervals. The data controller must provide remote access to a secure system through which the data subject obtains direct access to the data concerning them. Furthermore, the Authority consistently accepts that the data subject has the right to know whether personal data concerning them is being processed, as well as to obtain knowledge of it, without the need to invoke a legitimate interest, since this is inherent and forms the basis of the right of access, that is, the right of the data subject to obtain information concerning them that has been recorded in a file maintained by the data controller, so that the fundamental principle of law for the protection of personal data, which consists of the transparency of processing as a prerequisite for any further control by the data subject of its lawfulness, is realized. Similarly, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access. Furthermore, the obligation to satisfy the right of access is universal, meaning it concerns all information relating to the data subject and, additionally, does not depend on the invocation of the reasons for exercising the right. Consequently, the satisfaction of the right does not depend on a prior assessment by the data controller as to whether the exercise of the right is justified or not.

3. Because according to Article 12 of the GDPR "1. The data controller takes appropriate measures to provide the data subject [...] with any communication in the context of the exercise of their rights under this Regulation in a concise, transparent, intelligible, and easily accessible form, using clear and plain language."

2 See Recital 63 of the GDPR.

3 See also Recital 63 of the GDPR and Decision of the Authority 23/2020.

4 See in particular, Decisions of the Authority 32/2019, 144/2017, 195/2014, 193/2014, and 75/2011, available on the Authority's website.

5 See, for example, Decisions of the Authority 2/2020, 23/2020, 16/2017, 98/2014, 149/2014, 72/2013, and 71/2013.

6 See EDPB, Guidelines 01/2022 on data subjects' rights – Right of access, Version 2.0, adopted on 28 March 2023, Chapter 61, paragraph 167, page 52, https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf.

7 See Decision of the Authority 16/2017.

8 See also Decision of the Authority 1/2005, which ruled that the data controller must respond to the data subject's access request without ambiguity and evasions, invoking reasons unrelated to the satisfaction of the right of access. See also Decision of the Authority 16/2017.

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Framework of Articles 15 [...] 2. The data controller facilitates the exercise of the rights of the data subjects provided for in Articles 15 [...] 3. The data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without delay and in any case within one month of receiving the request. The aforementioned deadline may be extended by two

additional months, if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of the said extension within one month of receiving the request, as well as the reasons for the delay. [...] 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject, without delay and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy. Furthermore, according to paragraphs 1 and 2 of Article 24 of the GDPR: “1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the data controller implements appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this Regulation. These measures are reviewed and updated when necessary. 2. Where appropriate in relation to the processing activities, the measures referred to in paragraph 1 include the implementation of appropriate policies for the protection of data by the data controller.”

4. Since according to Article 4 paragraph 3 of Law 3471/2006 “Protection of Personal Data and Privacy in the Electronic Communications Sector,” which has transposed Directive 2002/58/EC into national law, as amended by Directive 2009/136/EC, “3. The recording of conversations and related traffic data is permitted when carried out during lawful professional practice for the purpose of providing evidence of a commercial transaction or other professional communication, provided that both parties, after prior notification regarding the purpose of the recording, give their consent.” As the Authority has also ruled (see Annual Report for the year 2006, p. 78, available on its website www.dpa.gr), when the recording of conversations is lawful according to Article 4 paragraph 3 of Law 3471/2006, prior consent from both parties is not required, but prior notification to the party that does not initiate the recording is required according to Article 11 of Law 2472/1997 (cf. Article 5 paragraph 2 of Directive 2002/58/EC in conjunction with Recital 23 of the same Directive). The required notification by law can also be made through a recorded message before the start of the critical telephone conversation. Moreover, since recorded conversations also constitute personal data of the subscribers or users of telephony (of both parties to the communication), for matters not specifically regulated in Law 3471/2006, the provisions of the GDPR and the implementing Law 4624/2019 apply. Furthermore, Directive 2002/58/EC, which has been transposed into national law by Law 3471/2006, constitutes a specification of the rules of Directive 95/46/EC. Therefore, the interpretation of the provision of Article 4 paragraph 3 of Law 3471/2006 should be made in conjunction with the fundamental principles governing the processing of personal data (Article 5 of the GDPR). Consequently, with this provision, as determined by the Authority, the recording of a professional conversation is permitted, as an exception, only when it is necessary to prove that the specific conversation took place and had a specific content, and not generally in every case of professional communication. Specifically, however, the Code of Procurement of Electric Energy (Government Gazette B/832/09-04-2013) mandates the recording and management of customer and other consumer requests/complaints submitted orally or in writing, to the extent that

9 Recital 23 of Directive 2002/58/EC: “The confidentiality of communications should be ensured even in lawful business practice. Whenever necessary and legally permissible, communications may be recorded for the purpose of proving commercial transactions. In this process, Directive 95/46/EC applies. Before recording, the parties to the communications should be informed about it, its purpose, and the duration of storage. The recorded communication should be deleted as soon as possible and, in any case, at the latest at the end of the period during which the transaction may legally be contested.”

Article 5 paragraph 2 (confidentiality of communications) of Directive 2002/58/EC: “Paragraph 1 does not affect any lawful recording of conversations and related traffic data when carried out during lawful professional practice for the purpose of providing evidence of a commercial transaction or any other professional communication.”

10 For the above, see Decisions of the Authority 47/2018, para. 2, 73/2017, para. 5, as well as 86/2015, para. 1.

11 See in this regard Decision of the Authority 73/2017.

is provided for in Article 3 of Annex III hereof, which defines the following:

“Reporting system with proof of registration (protocol number)

1. Each Supplier is obliged to establish and operate a complete system for recording and managing reports from customers and other consumers, which meets the requirements set forth in this document.
2. For each submitted request/complaint, the Supplier must electronically register the following details:
 - a. The date of submission as well as the method of submission (orally or in writing).
 - b. The identification and contact details of the complaining consumer.
 - c. A brief description of the request/complaint.
 - d. A brief description of the Supplier's first action upon receiving the request.
 - e. Whether there was a response to the request and the details on which it was based.
 - f. The dates on which communication with the consumer took place.
3. For each individual communication that takes place with the consumer regarding the same issue, the following must be recorded:
 - a. The date of communication.
 - b. The method of communication (orally or in writing).
 - c. The details of the person who communicated if it is not the same as the one who initially communicated.
 - d. A brief description of any response given to the consumer or action communicated to them during the current communication.
 - e. Organization of further communication with the consumer.
4. Each individual communication must be conducted based on the details submitted with the request.
5. Until the final resolution of each report, the following details must be recorded in the System:
 - a. The stages of the process applied by the Supplier for the investigation and resolution of the request.
 - b. The date of completion of the process, as provided for in the relevant Code.
 - c. The date on which the investigation of the request was actually completed.
 - d. The date on which the consumer was informed either about the internal review process of the Supplier's initial response or about the bodies resolving their request.” Therefore, from the combination of the above provisions, it follows that the recording of the relevant conversations in the cases under examination is lawful, as it constitutes a legitimate professional practice under Article 4, paragraph 3 of Law 3471/2006.

5. Since in the first examined case, from the file's details, it appears that the complainant duly and clearly exercised on ... the right of access to the recorded conversations concerning them, the claims of the respondent, which assert ambiguity and vagueness of the relevant request (see page 5 of the above memorandum submitted after the hearing), in order to justify the delayed response to the access request, are unfounded, as well as the claim that the complainant specified for the first time the calls they requested with the complaint submitted to the Authority (see also the requests for call hearings submitted by the complainant to the respondent company on ...). Furthermore, the respondent company acknowledges in its response number G/EIS/9425/09-08-2022 before the Authority that it satisfied the complainant's request on ..., that is, about eight months after the exercise of the relevant right of access, due to, as it claims, the large volume of related requests it receives due to the ongoing energy crisis, while it does not appear that it informed the complainant within a month of receiving their relevant request about an extension of the deadline for satisfying the relevant right, explaining the reasons for the delay. Given these facts, a violation of the provision of Article 12, paragraph 3 of the GDPR regarding the right of access is established.

6. Since in the second examined case, from the file's details, it appears that the complainant duly exercised before the respondent processing responsible on ... as well as on ..., as detailed above, the right of access to the recorded conversations in question. The respondent company does not dispute the exercise of the right of access by the complainant. It also acknowledges in its response number G/EIS/9423/09-08-2022 before the Authority that it satisfied the complainant's request on ..., that is, about six months after the exercise of the relevant right of access, due to, as it claims, the large

volume of related requests it receives due to the ongoing energy crisis, while it does not appear that it informed the complainant within a month of receiving their relevant request about a two-month extension regarding the satisfaction of the relevant right, explaining the reasons for the delay. It should be noted that the content of the above extrajudicial statement sent by the complainant to the respondent company, which consisted of "fabrications," as mentioned in the memorandum submitted after the hearing by the latter, does not negate the company's obligation.

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as the Data Controller shall examine and satisfy accordingly the right of access exercised by the second complainant through the aforementioned extrajudicial means, rejecting the contrary claims of the company. Given these facts, a violation of the provision of Article 12, paragraph 3 of the GDPR regarding the right of access is established within the framework of the second complaint under examination.

7. Since in the third case examined above, from the evidence in the file, it appears that the complainant clearly exercised before the complained Data Controller on ..., as detailed above, the right of access to the recorded conversation concerning him, while on ... he exercised the right of access to the same call by submitting the relevant standardized form sent to him by the complained party on Furthermore, it appears that the complainant exercised on ... with an electronic message to the complained company, also in an explicit and clear manner, the right of access to all recorded conversations concerning him during the four months prior to However, while approximately three months had already passed since the initial exercise of the right of access and about two months since the exercise of the same right through the submission of the aforementioned standardized form, the complained company requested him on ... to resubmit the above-mentioned form regarding the first requested conversation, despite the fact that the said form had already been duly completed according to the instructions of the complained party (see the relevant electronic conversations submitted before the Authority from ... and ... between the complainant and a representative of the complained party), while for all the other conversations, he was urged to follow the same submission procedure for the relevant form, complicating the exercise of the right of access. Finally, the complained company acknowledges in its response with reference number Γ/ΕΙΣ/9930/07-09-2022 before the Authority that it satisfied the complainant's request on ..., that is, about seven months after the exercise of the right of access for the first requested conversation and about three and a half months after the exercise of the right for the other calls, due, as it claims, to the large volume of related requests it receives due to the ongoing energy crisis, while it does not appear that the complained party informed the complainant within a month of receiving the relevant requests about a two-month extension regarding the satisfaction of the right, explaining the reasons for the delay. Furthermore, it is noted that from the electronic message dated ... from a representative of the complained party to the complainant, it appears that the requested call had been located, as its representative confirms that he listened to it, specifying the subject of the conversation, and therefore, despite the fact that the conversation to which the complainant had requested access had already been isolated, the satisfaction of the access request was not initiated, as would have been easy for the complained company after locating the relevant call, and the complainant was guided to submit a specific type of form in order to be granted access. Therefore, the claim of the complained party that the delay in responding to the complainant's right of access is due to the particular burden of similar requests under the circumstances is contradicted by the fact that already from the following month of the initial exercise of the right, not only was the first requested recorded conversation concerning the complainant located, but it was also listened to.

Based on the above factual circumstances, which arise from the submitted relevant documents, the complained party, which acknowledges that the relevant request of the complainant was submitted for the first time on ..., even without the submission of the standardized form, did not respond within the timeframe provided in Article 12 to the requests of the complainant that were received by the company on ... and ..., despite the fact that the exercise of the right of access, both times as detailed above, was clear, and the claims of the complained party, which assert that the purpose of the complainant was not access to his data and that there was a need to identify the requested data and to conduct a legitimacy check, are to be rejected (see page 6 of the post-hearing submitted Memorandum).

Moreover, given that the right of access does not necessarily require a specific form or to be exercised in a ceremonial manner, the requirement of the complained company that a clear request for access to personal data must be submitted to it in a specific and only form, beyond highlighting an excessively formalistic approach to the matter,

12 See Decision of the Authority 26/2021, para. 11, as well as 36/2021, para. 7, available on the website www.dpa.gr.

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The right of access that is detrimental to the data subject simultaneously creates difficulties in exercising this right, contrary to the definitions of paragraph 2 of the aforementioned Article 12 of the GDPR, according to which the data controller facilitates the exercise of the rights of data subjects, in accordance with what has been accepted in the Guidelines 01/2022 of the European Data Protection Board, which state the following: For the exercise of the right of access, there is no specific prerequisite within the framework of the GDPR when the data subject chooses a communication channel to address the data controller. Even in the case where the data subject chooses to exercise the right of access through a communication channel different from that indicated as preferred by the data controller, the latter must handle this request, provided it has been received through another communication channel that is nonetheless provided by the data controller itself. The data controller is obliged to take all reasonable measures to facilitate the exercise of the rights of data subjects, and it is suggested as a good practice that the data controller takes measures to improve internal communication among its employees to redirect such requests to the appropriate employee responsible for handling them.

According to the aforementioned, in the case of the third complaint under examination, a violation is established both of paragraph 3 of Article 12 of the GDPR regarding the response of the complained party to the right of access and of paragraph 2 of this article, as detailed above.

8. Since, according to what is stated in the previous considerations, there is a delayed satisfaction of the relevant access rights exercised by the complainants, and thus, three (3) separate successive violations of Article 12 paragraph 3 of the GDPR regarding the right of access have been established within a short period, namely from the completion of one month from the ... of the year ..., when the chronologically first of the examined access rights was exercised, until after the transmission from the Authority to the complained party of the complaints under examination for the provision of clarifications by the latter, that is, during the months ... and ... of ..., during which the relevant requests were satisfied with delay. As for the third complaint under examination, a violation of the provision of paragraph 2 of Article 12 of the GDPR is also established as detailed above.

9. Since according to the GDPR (Recital 148) in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, should be imposed for each violation of the Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation.

10. Based on the above, the Authority considers that it is appropriate to exercise its corrective powers under Article 58 paragraph 2 of the GDPR in relation to the established violations.

11. The Authority, taking into account the above, the fact that another complaint had been submitted against the complained party, prior to the three examined complaints, for violation of a data subject's right, after which the Authority had sent a letter to the company on 09-08-2022 (see the reference number Γ/ΕΞΕ/2017/2022), weighing any existing exceptional circumstances, had drawn the company's attention to ensure that it satisfies the rights of data subjects within the deadlines provided in Article 12 paragraph 3 of the GDPR, taking the appropriate technical and organizational security measures, the fact that the consequences of the violation of the aforementioned provisions of Article 12 paragraphs 2 and 3 of the GDPR regarding the right of access are, in this case, of minor significance, that the complained company did not gain any benefit from this, as well as that it satisfied the relevant access rights, albeit with delay, considers that a reprimand should be imposed on the complained company as a corrective measure under Article 58 paragraph 2(b) of the GDPR, which is deemed appropriate to the severity of the violations, and orders the company, in accordance with Article 15 paragraph 4(b) of Law 4624/2019, to act in accordance with what is stated in the operative part.

FOR THESE REASONS

The Authority

- a) Finds that the complained company named "VOLTON Greek Energy S.A." has committed three (3) violations of Article 12 paragraph 3 of the GDPR as well as a violation of Article 12 paragraph 2 of the GDPR regarding the right of access, as detailed above, and therefore issues a reprimand for the aforementioned established violations in accordance with Article 58 paragraph 2(b) of the GDPR.
- b) Orders, pursuant to Article 15 paragraph 4(b) of Law 4624/2019, the complained company to act, within three (3) months from the receipt of this decision, to organize its internal procedures in such a way, as an organizational security measure, especially in the context of any existing exceptional circumstances, to facilitate the exercise of the rights of data subjects and to satisfy the exercised rights within the deadlines provided in Article 12 paragraph 3 of the GDPR, and to inform the Authority accordingly.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou